

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Griffin Sherbert	Team: Squad #07	CCRB Case #: 201900271	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 12/31/2018 1:00 AM	Location of Incident: 236th Street, between Furman Avenue and White Plains Road; and the 47th Precinct stationhouse	18 Mo. SOL 2/14/2021	Precinct: 47		
Date/Time CV Reported Thu, 01/10/2019 11:14 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 01/10/2019 11:14 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Angel Lopez	18194	958827	047 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Ariana Esteban	4188	943213	047 PCT
2. POM Austin Hieronymi	24365	957676	047 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Angel Lopez	Abuse: Police Officer Angel Lopez stopped the vehicle in which § 87(2)(b) was an occupant.	
B . POM Angel Lopez	Abuse: Police Officer Angel Lopez frisked § 87(2)(b)	
C . POM Angel Lopez	Abuse: Police Officer Angel Lopez searched § 87(2)(b)	
D . POM Angel Lopez	Abuse: Police Officer Angel Lopez searched the vehicle in which § 87(2)(b) was an occupant.	
E . POM Angel Lopez	Abuse: At the 47th Precinct stationhouse, Police Officer Angel Lopez strip-searched § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Case Summary

On January 10, 2019, § 87(2)(b) called the CCRB and filed the following complaint.

On December 31, 2018, at approximately 1:00 a.m., Police Officer Angel Lopez of the 47th Precinct, stopped § 87(2)(b) vehicle in the vicinity of Byron Avenue and East 236th Street in the Bronx (**Allegation A: Abuse of Authority**, § 87(2)(g) PO Lopez informed § 87(2)(b) that he smelled the odor of marijuana, and ordered him to exit. PO Lopez frisked and searched § 87(2)(b) and also searched his vehicle (**Allegations B, C, and D: Abuse of Authority**, § 87(2)(g) PO Lopez placed § 87(2)(b) under arrest for having a suspended driver's license.

PO Lopez transported § 87(2)(b) to the 47th Precinct stationhouse, wherein he conducted a strip-search of § 87(2)(b) outside of the holding cells (**Allegation E: Abuse of Authority**, § 87(2)(g) **Allegation F: Other**, § 87(2)(g)

The investigation obtained three Body-Worn Camera ("BWC") video from the involved officers, which capture the relevant portions of this incident (BR01-BR03).

Findings and Recommendations

Allegation A—Abuse of Authority: Police Officer Angel Lopez stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation B—Abuse of Authority: Police Officer Angel Lopez frisked § 87(2)(b)

Allegation C—Abuse of Authority: Police Officer Angel Lopez searched § 87(2)(b)

Allegation D—Abuse of Authority: Police Officer Angel Lopez searched the vehicle in which § 87(2)(b) was an occupant.

On December 31, 2018, at approximately 1:00 a.m., § 87(2)(b) was driving home, alone in his white, 2003, Toyota Corolla on East 236th Street between White Plains Road and Furman Avenue in the Bronx, when he was stopped by a marked RMP via lights and siren (BR04).

PO Lopez and Sergeant Ariana Esteban of the 47th Precinct, approached the driver side and passenger side, respectively. § 87(2)(b) asked what he was being stopped for, and PO Lopez replied, "It smells like weed. Have you been smoking weed?" § 87(2)(b) replied, "I asked you what you were pulling me over for," and PO Lopez repeated that it smelled like marijuana and asked if he had smoked any that evening. § 87(2)(b) told PO Lopez no. During the interview, § 87(2)(b) acknowledged that he had smoked marijuana in his vehicle that day, approximately 8 to 12 hours prior to being stopped. PO Lopez additionally told § 87(2)(b) that the license plate light on his vehicle was out.

PO Lopez ordered § 87(2)(b) to step out of the vehicle and he complied. PO Lopez frisked § 87(2)(b) did not recover any weapons or narcotics, and then told him to reenter his vehicle. § 87(2)(b) acknowledged to the CCRB, that his driver's license was suspended at the time. The officers returned to their RMP, and a few minutes later, they returned to § 87(2)(b) vehicle.

PO Lopez placed § 87(2)(b) under arrest for driving with a suspended driver's license. PO Lopez searched the front and back seat areas of § 87(2)(b) vehicle. Upon concluding the search, PO Lopez showed § 87(2)(b) a few specks of weed he had found in his vehicle. PO Lopez transported § 87(2)(b) to the 47th Precinct stationhouse, while a third officer, who was present but did not interact with § 87(2)(b) drove his vehicle to the 47th Precinct stationhouse.

The investigation obtained BWC footage from the involved officers, which captured the relevant portions of this incident (BR01-BR03). Two Snagit clips of PO Lopez's BWC were

produced (BR05 & BR06), in order to show the video segments pertaining to the allegations, as described below.

In the first clip (BR05), PO Lopez and Sgt. Esteban approach the driver's side of § 87(2)(b) vehicle, as § 87(2)(b) arm is seen extending from the window and places his keys on the roof of the car. After PO Lopez obtains his license, and informs him that he smells marijuana, § 87(2)(b) consents to being searched and exits the vehicle. PO Lopez frisks § 87(2)(b) who is seen wearing a bulletproof vest. PO Lopez tells § 87(2)(b) to step to the back and he complies.

In the second clip (BR06), PO Lopez searches the front seat area of § 87(2)(b) vehicle. At the 1:19 minute mark, PO Lopez approaches § 87(2)(b) and asks him if he want to see the "weed crumbs" he found, and then returns to searching the vehicle. PO Lopez does not recover any packaged marijuana from the vehicle.

PO Lopez stated that on the evening of the incident, he observed a vehicle with a broken license plate light, and made the decision to conduct a vehicle stop (BR07). PO Lopez and Sgt. Esteban approached the driver side of the vehicle and immediately smelled the odor of marijuana. PO Lopez asked § 87(2)(b) for his license and informed him that he smelled marijuana. PO Lopez asked § 87(2)(b) to exit the vehicle and if he could search his person and his vehicle. § 87(2)(b) complied and consented to the searches.

PO Lopez frisked § 87(2)(b) wherein he observed that he was wearing a bulletproof vest, which § 87(2)(b) said he was wearing to keep warm. § 87(2)(b) stood with Sgt. Esteban at the back of his vehicle while PO Lopez conducted a search of the passenger compartment. During the search, PO Lopez observed "crumbs" of marijuana within the vehicle, but did not recover any packaged narcotics.

Upon concluding the search, PO Lopez ran § 87(2)(b) information on his South Carolina driver's license, and found that his NYS driver's license was suspended. PO Lopez returned to § 87(2)(b) vehicle, asked him to exit, and handcuffed him. PO Lopez placed § 87(2)(b) into their RMP, and transported him and his vehicle to the 47th Precinct stationhouse.

Every motor vehicle driven upon a public highway during the period from one-half hour after sunset to one-half hour before sunrise, shall display, if required to display a numbered plate on the rear, a white light which shall illuminate the numerals on such plate in such manner as to render such numerals legible for at least fifty feet from the rear. VTL § 375.2 (a)(4) (BR08).

The smell of marijuana smoke, with nothing more, is sufficient to provide police officers with probable cause to search an automobile and its occupants. People v. Chestnut, 43 A.D.2d 260 (App. Div. 1974) (BR09).

The facts are undisputed in this case. PO Lopez conducted a lawful stop of § 87(2)(b) vehicle upon observing him driving without a license plate light. § 87(2)(g)

§ 87(2)(g)

Allegation E—Abuse of Authority: At the 47th Precinct stationhouse, Police Officer Angel Lopez strip-searched § 87(2)(b)

§ 87(2)(g), § 87(4-b)

Upon arrival to the 47th Precinct stationhouse, PO Lopez escorted § 87(2)(b) to the holding cell area, ordered him to remove his bulletproof vest, and the rest of his clothing, in view of other prisoners including females, who were present in the holding cells (BR04). § 87(2)(b) stated that upon removing his long sleeve shirt, a small plastic bag of marijuana fell out of his shirt sleeve. PO Lopez ordered § 87(2)(b) to take off his shoes, and to fully remove his socks. § 87(2)(b) complied, and PO Lopez recovered seven bags of cocaine in “powder/rockish” form, from the toe of one of his socks.

PO Lopez ordered § 87(2)(b) to lower his pants halfway down, and his long johns underneath halfway down, and he complied. § 87(2)(b) stated that he also pulled the waistband of his underwear away from his body, slightly exposing his groin area, and PO Lopez told him to stop. § 87(2)(b) clarified that PO Lopez did not ask him to pull the waistband of his underwear away from his body, but that he did so without prompt. In response, PO Lopez stated, “Stop. Don’t do that no more.” PO Lopez did not frisk § 87(2)(b) when his pants or thermal long johns were lowered halfway. PO Lopez lodged § 87(2)(b) in a holding cell.

Neither the 47th Precinct Command Log (BR10), nor PO Lopez’s memo book (BR11) contain any notation indicating that § 87(2)(b) was strip searched pursuant to his arrest. Additionally, Arrest report #§ 87(2)(b) (BR12), prepared by PO Lopez, specifically notes that a strip search was not conducted in regards to § 87(2)(b) arrest.

The investigation obtained BWC footage from the involved officers, which captured the relevant portions of this incident (BR01-BR03). A Snagit clip of PO Lopez’s BWC was produced (BR13), in order to show the video segment pertaining to the allegations, as described below.

In the clip, § 87(2)(b) is seen standing in the holding cell area, removing his shirt, which reveals his bulletproof vest underneath. Notably, the female holding cell seen behind § 87(2)(b) is empty. Police Officer Austin Hieronymi of the 47th Precinct, enters the holding cell area as § 87(2)(b) removes his bulletproof vest, causing a small bag of marijuana to fall out. PO Lopez collects the bag, and frisks § 87(2)(b) over his pants at the 56-second mark. Afterwards, PO Lopez orders § 87(2)(b) to “take [his] socks off, completely,” wherein several plastic bags of crack cocaine are found and recovered. At the 2:45 minute mark, PO Lopez states, “Pants,” and § 87(2)(b) makes a downward-bending motion, indicating that he pulls down both his jeans and long johns underneath, evident by PO Lopez immediately stating, “You can pull the long johns up.” § 87(2)(b) makes another downward motion not captured by the BWC, and PO Lopez reiterates, “No, pull the long johns up.” PO Lopez then frisks § 87(2)(b) waist area over his long johns with his jeans halfway down, and then lodges him in the holding cell.

After reviewing his BWC during his interview, PO Lopez stated that when he said “pants,” § 87(2)(b) pulled both his pants, and his long johns underneath his pants, down, exposing his underwear, and pulled his long johns back up when PO Lopez directed him to (BR07). Once his long johns were pulled back up and covering his underwear, PO Lopez frisked § 87(2)(b) before lodging him in the holding cell. PO Lopez denied that he conducted a strip search of § 87(2)(b). In testimony provided for a prior complaint filed by § 87(2)(b) CCRB #§ 87(2)(b) (BR16), wherein he similarly alleged that PO Lopez conducted a strip search of him;

PO Lopez stated that an individual “would have to be fully naked,” in order for it to constitute a strip search, and that his understanding was based upon the training he received at the Police Academy.

A strip search is any search in which an individual’s undergarments (e.g., bra, underwear, etc.) and/or private areas are exposed or in which an individual’s clothing is removed, lifted up, or pulled down to expose undergarments or private areas. [...] Strip searches may only be conducted with the knowledge and approval of the arresting officer’s immediate supervisor or the borough Court Section supervisor. A strip search may only be conducted when the arresting officer reasonably suspects that weapons, contraband, or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by the previous search methods. Patrol Guide, Procedure 208-05 (C)(1) (BR11).

A strip search shall be conducted only by a member of the same gender as the arrested person, in a secure area, in utmost privacy, and in the presence of only those members of service reasonably necessary to conduct the search. [...] It should not be necessary to touch the subject’s body, except for the examination of hair. Patrol Guide, 208-05 (C)(4) (BR11).

If a strip search is conducted, such information will be entered in the Command Log, the arresting officer’s memo book, and also documented on the arrest report. Patrol Guide, 208-05 (C)(1.NOTE) (BR11).

As seen in the video clip of his BWC (BR13), when PO Lopez said the word “pants” to § 87(2)(b) in the holding cell area, § 87(2)(b) took this as an order and lowered both his jeans and the pair of long johns worn underneath, exposing his underwear. § 87(2)(g)

§ 87(2)(g) Additionally, PO Lopez’s BWC footage shows that he did not seek authorization from Sgt. Esteban or any other supervisor prior to conducting the strip search.

§ 87(2)(g) PO Lopez conducted the strip search of § 87(2)(b) in the holding cell area where several unidentified prisoners were present.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- PO Lopez, a three-year-member-of-service, has had two prior CCRB complaints filed against him, with a total of three allegations, none of which were substantiated (see Officer History).

PO Lopez has two pending CCRB complaints filed against him, § 87(2)(b)

- § 87(2)(b)
- In CCRB #201807557, frisk, search of a person, and vehicle search allegations have been pleaded against PO Lopez, which are pending Board review.

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation.
- As of May 29, 2019, § 87(2)(b) has not filed a Notice of Claim with the NYC Comptroller's office in regards to this incident (BR14).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 7

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date